

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**APPENDIX TO COMPLAINANTS’ MOTION FOR AN ENLARGEMENT OF TIME TO
MOVE FOR LEAVE TO SEEK DISCOVERY AND FOR OTHER RELIEF**

APPENDIX “1” Emails between counsel for the parties regarding respondents’ consent and/or objections to the relief requested within complainants’ instant motion.

APPENDIX “1”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No. 16-16

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Wed, Jan 25, 2017 at 6:53 PM

To: "Chang, Eric" <echang@mmwr.com>, Peter Cipparulo <petercipparulo@cipplaw.com>

Cc: "Vengrow, Stephen" <svengrow@mmwr.com>

Gentlemen,

Complainants intend to file a motion for an enlargement of time to move for leave to seek discovery in this matter, and in the alternative, for a stay of the proceedings pending the Commission's ruling on Complainants' Exceptions, which are currently due on February 8, 2017. We intend to file the motion tomorrow.

Kindly note your consent or objection to this motion by close of business (to wit: by 5:00 p.m.) on January 26, 2017.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)Fax: [347-572-0439](tel:347-572-0439)<http://www.nussbaumlawfirm.com/>

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Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No. 16-16

Chang, Eric <EChang@mmwr.com>

Thu, Jan 26, 2017 at 10:00 AM

To: Marcus Nussbaum <marcus.nussbaum@gmail.com>, Peter Cipparulo <petercipparulo@cipplaw.com>

Cc: "Vengrow, Stephen" <SVengrow@mmwr.com>

Dear Mr. Nussbaum:

Please advise as to the duration of the requested enlargement of time for discovery.

Also, please confirm whether Complainants are also seeking an enlargement of time to the exception due date of February 8, 2017.

**Eric Chang** | Associate**Montgomery McCracken Walker & Rhoads LLP**

437 Madison Avenue, 29th Floor | New York, NY 10022

Tel: 212-867-9500 | Fax: 212-599-1759 | echang@mmwr.com | [Attorney Profile](#)

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]**Sent:** Wednesday, January 25, 2017 6:54 PM**To:** Chang, Eric; Peter Cipparulo**Cc:** Vengrow, Stephen**Subject:** FMC Docket No. 16-16

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Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No. 16-16

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Thu, Jan 26, 2017 at 12:53 PM

To: "Chang, Eric" <EChang@mmwr.com>

Cc: Peter Cipparulo <petercipparulo@cipplaw.com>, "Vengrow, Stephen" <SVengrow@mmwr.com>

Eric,

We do not plan on seeking an enlargement of the February 8, 2017 due date for the filing of exceptions.

We are seeking an enlargement of time for the February 2, 2017 due date for the filing of motions for leave to take discovery, and we are asking that this deadline be extended to a date twenty two days after the Commission rules on the forthcoming Exceptions which we intend to file.

In the alternative, we are asking that the proceeding be stayed in its entirety pending the Commission's ruling on the exceptions. If the Commission ultimately determines that complainants may proceed on their claims with respect to the Mercedes, this would avoid duplication of discovery that would arise out of piecemeal discovery with respect to the Porsche, and then later the Mercedes.

Please let me know your clients' position by 4:30 p.m. as I am required to file this motion today.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No. 16-16

Chang, Eric <EChang@mmwr.com>

Thu, Jan 26, 2017 at 1:04 PM

To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Cc: Peter Cipparulo <petercipparulo@cipplaw.com>, "Vengrow, Stephen" <SVengrow@mmwr.com>

Dear Mr. Nussbaum:

We consent to the 22-day enlargement of time for the February 2, 2017 due date for the filing of discovery motions, but our consent is contingent upon the February 8, 2017 due date for the filing of exceptions remaining in place.

**Eric Chang** | Associate**Montgomery McCracken Walker & Rhoads LLP**

437 Madison Avenue, 29th Floor | New York, NY 10022

Tel: 212-867-9500 | Fax: 212-599-1759 | echang@mmwr.com | [Attorney Profile](#)

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]**Sent:** Thursday, January 26, 2017 12:54 PM**To:** Chang, Eric**Cc:** Peter Cipparulo; Vengrow, Stephen**Subject:** Re: FMC Docket No. 16-16

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Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No. 16-16

Peter Cipparulo <PeterCipparulo@cipplaw.com>

Thu, Jan 26, 2017 at 3:37 PM

To: "Chang, Eric" <EChang@mmwr.com>, Marcus Nussbaum <marcus.nussbaum@gmail.com>

Cc: "Vengrow, Stephen" <SVengrow@mmwr.com>

Mr. Alper's position is identical.

Peter Cipparulo, III

Certified by the Supreme Court of New Jersey as a Civil Trial Attorney

Law Offices of Peter Cipparulo, III, LLC

349 Route 206, Suite K

Hillsborough, NJ 08844

Ph: 908-275-8777

Mobile: 908-938-6739

Email: petercipparulo@cipplaw.com

Website: cipplaw.com

Fax: 973-737-1617

From: Chang, Eric [mailto:EChang@mmwr.com]**Sent:** Thursday, January 26, 2017 1:04 PM**To:** 'Marcus Nussbaum'**Cc:** Peter Cipparulo; Vengrow, Stephen**Subject:** RE: FMC Docket No. 16-16

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